

Present :
Mr. Justice Md. Jahangir Hossain
And
Mr. Justice Ashish Ranjan Das.

Criminal Misc.No.4179 of 2000

In the matter of:

Abdul Kader
..... Petitioner
-Versus-
The State
..... Opposite party.
No one appears
.....For the accused- petitioner.
Mr.S.M.Golam Mostofa, D.A.G.
.
... For the State

Heard on:
Judgment on: 23.08.2021

Ashish Ranjan Das, J:

Rule for quashment under section 561-A of the Code of Criminal Procedure (for short the Code) at the instance of the convict petitioner Abdul Kader was issued on 16.07.2000 in the following terms :

“ Let the records of the case be called for and a Rule be issued calling upon the Deputy Commissioner, Comilla to show cause as to why the judgment and order of conviction and sentence dated 11.04.2000 passed by the Additional Sessions Judge, 2nd. Court and Special Tribunal No. V, Comilla in Special Tribunal Case No.167 of 1995 should not be quashed or pass such other or further order or orders as to this court may seem fit and

proper.

It appears that the convict petitioner obtained bail from the court by order dated 11.12.2001 and since then he did not turn up nor he take any step to get the rule heard. The matter has been occurring in the daily cause list with the name of the advocate but as none appeared to press the Rule. It has been long pending before us it was taken up for disposal on merit. However, we have heard of the learned Deputy Attorney General opposing the Rule.

Short facts relevant for the purpose that could be gathered from the file are that the victim Rojina aged about 6 to 7 years was student of class – I(one) only in the local Primary School. At about 3 P.M. on 26.04.1993 while Rojina was coming back from school at this in front of the house of accused Abdul Kader in the same area, later called him inside the house. Between Rojina entered there the convict shut the door dragged her mouth and forcibly committed raped upon her causing bleeding injury on her private part, where after she was shifted to her residence. Next day she was admitted in to Comilla General Hospital where she was given medical treatment and had to take 4 stitches in to her genital parts. While the girl was sick and lying in the Hospital the matter was raised with the leading_villagers. A Salish took place and the accused was ordered to give compensation, however the Salish could not be concluded since the victim girl was lying in Hospital. The girl's guardian and father used to work in the middles. So there are gone to being a regular police case against the mighty culprit. The girl's mother Jahanara Begum ran to the local

elderly villager Nurul Haque (P.W.1) who filed a petition of complaint in the local Sador Magistrate on 11.05.1993 and the case arose one.

During investigation the victim girl's statement was recorded under section 164 of the Code hence a brief made the same statement. Her injury certificate was collected and the statements of the concern witnesses were recorded. Finally charge sheet was submitted against the sole accused Abdul Kader attracting section 4, section 4B of the Cruelty to Woman (Deterrent Punishment) Ordinance ,1983 (for short the ordinance) that remain in force in the time. However the sole accused remain absconding and he remain so till the judgment of conviction and sentence was pronounced. Meanwhile provisions to compel his attendance under sections 87 and 88 of the Code and newspaper publications were made the copy from the order sheet and the judgment of the court below thus of no avail.

On perusal of the evidences the learned Special Tribunal No.5, Comilla by his judgment dated 11.04.2000 passed in Special Tribunal Case No. 167 of 1995 convicted the standing sole accused and sentenced him to suffer rigorous imprisonment for 14 years followed by fine of Tk.10,000/-.

Now the case of the petitioner is that he is innocent and during the period he was working in Malaysia and not in the scene of the occurrence. Secondly, the provisions for notification and compelling attendance of the accused in section 87 and 88 of the Code were not complied with. Hence he could not prefer an appeal in time and this has been an abuse of the court process.

As above pointed out none appeared to press the rule although the convict petitioner appeared and obtained bail by this court. However, we have heard brief submissions of the learned Deputy Attorney General.

So far as the allegation are concern the Tribunal examined as many as 13 witnesses including the victim girl Rojina (P.W.2), her mother Jahanara Begum (P.W.3), the complainant Md. Nurul Hoque(P.W.1), Dr. A. H. Md. Golam Anwar Khan(P.W.8) examining the victim girl in the Comilla general hospital, the Investigation officer Saifuddin Khaled (P.W.11) and other the concern witnesses.

The learned Tribunal observed that there are convincing range of the evidences in support of the charge, who were not cross-examined and there was no inbuilt infirmity in their evidences. So the learned Tribunal was pleased to find the petitioner guilty and convicted and sentence for the charge of rape as has been mentioned above.

It requires being detailed elastration that a conviction may be quashed if the same is based on no evidence. But we see that there are adequate evidences and the principle for quashment on that count does not appear in the instant case.

The convict petitioner took a plea that the provisions of notification mean for compelling attendance of the accused under section 87 and 88 of the Code as well as the paper publications were not comply with. But we see from the order sheets and the judgment of the learned tribunal that the allegation is unfounded rather the

proclamation under section 87 and 88 were served by paper publication were made. Finally the convict petitioner took an alibi at the relevant time he was actually working in Malaysia. In his support by a supplementary affidavit the convict petitioner produced a plain paper certificate, this by some of company, Malaysia to mean that he was working in Malaysia. The petitioner annexed the Photostat copy of the certificate issued by an illegible signature of a person creating that he was working in the company since August, 1996 i.e long after the occurrence and before that he used to work as a temporary and illegally in his gain.

Firstly, section 3 of the Evidence Act does not allow to admit this time and documented evidence unless is bonafide established. Secondly, the alleged plain paper certificate on such some unknown persons does not make it clear that he was staying in Malaysia at the time of occurrence. The learned Deputy Attorney General pointed out that had illegal.....as a tourist he had attained Malaysia and come back and again he entered, so in absence of a prove that on the date of occurrence he has working a company, Malaysia which paper cannot be accepted or verified rather a first to the ground and in his term if otherwise length support to the allegation of the prosecution. We find force in his submission.

Therefore, we find that the judgment of conviction and sentence to the stitch of rape and the Ordinance, 1983 was based on adequate evidences were principle of quashment on account of no evidence does not apply. Secondly, there evidence is notification and proclamation

for his attendance in the court are also found from the record finally the alibi the petitioner took has fallen to the ground, thus constrained to take a view that this Rule has no merit.

As a result, the rule is discharged and the judgment of conviction and sentence dated 11.04.2000 passed in Special Tribunal Case No.167 of 1995 by the learned Special Tribunal No. 5, Comilla convicting and sentencing the accused petitioner is hereby upheld. The convict-petitioner is directed to surrender before the Tribunal in order to serve out the required portion of sentence.

The bail and ad-interim order passed earlier be recalled and vacated.

Send down the L.C. R and the copy of the judgment to the learned Special Tribunal No. 5, Comilla.

Md. Jahangir Hossain, J:

I agree.

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